

Notice of References Cited	Application/Control No. 14/622,732	Applicant(s)/Patent Under Reexamination MOHAMED ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	CPC Classification	US Classification
	A	US-				
	B	US-				
	C	US-				
	D	US-				
	E	US-				
	F	US-				
	G	US-				
	H	US-				
	I	US-				
	J	US-				
	K	US-				
	L	US-				
	M	US-				

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	CPC Classification
	N	JP 2005145948 A	06-2005	N/A	IDA, YOSHIMITSU	
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	
	V	
	W	Agasthiyar. "Nilapanai Kirutham" from Agasthiyar Vaithya Rathina Churukkam, Ed. Pub: Thamarai Noolagam, Chennai (1998, 2 nd edition), pp. 69-70. Retrieved from: TKDL on 2/18/2017.
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/622,732	02/13/2015	Suhaila MOHAMED	K1067.10014US02	3936
97149	7590	02/27/2017	EXAMINER	
Maschoff Brennan 1389 Center Drive, Suite 300 Park City, UT 84098			CLARK, AMY LYNN	
			ART UNIT	PAPER NUMBER
			1655	
			NOTIFICATION DATE	DELIVERY MODE
			02/27/2017	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

docket@mabr.com
info@mabr.com

Office Action Summary	Application No. 14/622,732	Applicant(s) MOHAMED ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 11/18/2016.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-20 is/are pending in the application.
5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-20 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|---|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date ____. | 4) ☐ Other: ____. |

Art Unit: 1655

The present application is being examined under the pre-AIA first to invent provisions.

DETAILED ACTION

Acknowledgment is made of the receipt and entry of the amendment filed on 11/18/2016.

Any rejection found in the previous Office Action and not repeated herein has been withdrawn based upon Applicant's amendments to the claims.

The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claims 1-21 are currently under examination.

Claim Rejections - 35 USC § 102

Claim(s) 1-10 and 12-15 is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Mudaliar (U*) (partially newly reapplied as necessitated by amendment).

Mudaliar teaches a composition comprising cocos nucifera leaf decoction obtained by combining cocos nucifera leaves with water (which reads on aqueous extract) for treating diabetes and that the composition is first formulated and is then orally administered (please note that Applicant's claims are construed as open, since Applicant claims a "composition comprising", which is open claim language and does not preclude additional active ingredients from being part of the formulation).

Although Mudaliar does not teach that the extract includes biophenols, proteins, lipids, saccharides, minerals and small peptides, that the extract reduces blood sugar, inhibits oxidative stress, inhibits diabetic complications or that the extract inhibits specific complications in diabetic patients, the claimed functional properties are inherent to the extract taught by Mudaliar because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Mudaliar are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, the extract taught by Mudaliar inherently has the same properties as claimed by Applicant.

Therefore, the reference anticipates the instantly claimed invention.

Art Unit: 1655

Claim(s) 1, 2 and 4-18 is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Ira et al. (N, translation provided herein) (newly applied as necessitated by amendment).

Ira teaches a method of treating diabetes comprising administering a methanol or ethanol extract of *Phoenix rupicola* leaves (which reads on palm leaf extract) (See abstract and paragraph 0023). Ira does not require any additional ingredients. Ira further teaches that the formulation can be administered as a tablet, capsule, suppository, injections, emulsion or liquid solution (See paragraph 0035). Ira further teaches that the dose can be 50 mg/kg (See paragraph 0039)

Although Ira does not teach that the extract includes biophenols, proteins, lipids, saccharides, minerals and small peptides, that the extract reduces blood sugar, inhibits oxidative stress, inhibits diabetic complications or that the extract inhibits specific complications in diabetic patients, the claimed functional properties are inherent to the extract taught by Ira because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Ira are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, the extract taught by Ira inherently has the same properties as claimed by Applicant.

Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

Claims 1-15, 18 and 19 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Mudaliar (U*), in view of "Nursing times" (V*).

The teachings of Mudaliar are set forth above and applied as before.

Mudaliar does not teach topical application of the composition.

"Nursing times" teaches that the form of administration of a drug is based upon the bioavailability of the drug and most effective route of administration. "Nursing times" teaches that topical administration is an effective form for locally administering medication.

Art Unit: 1655

It would have been obvious to modify the method by which the composition the composition is administered because at the time the invention was made, it was known that a composition comprising cocos nucifera leaf decoction is effective for treating diabetes and that medication can be either orally or topically administered as clearly taught by the above references.

Thus, an artisan of ordinary skill would reasonably expect that topically applying a composition comprising cocos nucifera leaf decoction would be more effective for treating diabetes and symptoms of diabetes by locally administering the medication to the desired site. This reasonable expectation of success would motivate the artisan to use a composition comprising cocos nucifera leaf decoction is effective for treating diabetes for treating diabetes and its symptoms by locally administering the formulation based upon the beneficial teachings of the above references.

The result-effective adjustment of particular conventional working conditions (e.g., determining the most effective way to administer medication to a person in need) is deemed merely a matter of judicious selection and routine optimization which is well within the purview of the skilled artisan.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Claims 1-20 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Ira et al. (N), in view of Agasthiyar (W), in view of "Nursing times" (V*) (newly applied as necessitated by amendment).

The teachings of Ira are set forth above and applied as before. Ira further teaches that Phoenix loureirii and that the stem or leaf can be used as the starting material (See paragraph 0022).

Ira does not teach Phoenix dactyifera.

Art Unit: 1655

Agasthiyar teaches that a composition comprising Phoenix dactyifera stem bark in an amount of 10.24 grams is effective at treating diabetes. Agasthiyar further teaches that the formulation can be a decoction (which reads on aqueous extract) and can be orally administered.

"Nursing times" teaches that the form of administration of a drug is based upon the bioavailability of the drug and most effective route of administration. "Nursing times" teaches that topical administration is an effective form for locally administering medication.

It would have been obvious to modify the Phoenix species and the method by which the composition the composition is administered because at the time the invention was made, it was known that a composition comprising an ethanol or methanol extract of Phoenix rupicola and/or Phoenix loureirii leaves and/or stems can be used to treat diabetes and since there are only 13 species within the Phoenix genus and it is well know that Phoenix dactyifera stem bark is effective for treating diabetes, it would be obvious to substitute Phoenix dactyifera as the species of Phoenix and to use either the leaf or stem and to extract the leaf or stem with alcohol for treating diabetes since it was known that Phoenix rupicola, loureirii and dactyifera are all effective species of Phoenix for treating diabetes as clearly taught by the above references.

Thus, an artisan of ordinary skill would reasonably expect that modifying the Phoenix species used in the formulation and administering a composition comprising an ethanol extract of Phoenix dactyifera leaf would be more effective for treating diabetes and symptoms of diabetes by orally or locally administering the medication to the desired site. This reasonable expectation of success would motivate the artisan to use a composition comprising ethanol extract of Phoenix dactyifera leaf to treat diabetes and its symptoms by orally or locally administering the formulation based upon the beneficial teachings of the above references.

The result-effective adjustment of particular conventional working conditions (e.g., determining the most effective way to administer medication to a person in need, determining a safe and effective amount of the medication and the number of days needed to effectively treat the condition) is deemed merely a matter of judicious selection and routine optimization which is well within the purview of the skilled artisan.

Art Unit: 1655

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Response to Arguments

Applicant's arguments have been fully considered but they are not persuasive.

Applicant argues that Mudalair teaches a formulation containing many ingredients that are used for treating diabetes and that there is no evidence that the palm leaf extract is effective in treating diabetes. Applicant further argues that there is no evidence that administering palm leaf extract will have the instantly claimed effects of reducing blood sugar, inhibit diabetic oxidative stress, diabetic complications or the diseases of claim 9.

However, this is not found persuasive because Mudalair teaches that a composition comprising a water extract of *cocos nucifera* leaf is effective at treating diabetes. Therefore, administering the formulation of Mudalair and the extract of *cocos nucifera* leaf would be expected to effectively treat diabetes and its symptoms/conditions related to diabetes. Therefore, the rejection is maintained for the reasons of record and the reasons set forth herein.

Applicant argues that the invention is not obvious over Mudalair in view of nursing times because the references do not teach the instantly claimed invention.

However, this is not found persuasive because a composition comprising *cocos nucifera* leaf extract is known to be useful for treating diabetes and formulation that is oral into a topical form is well known in the art to be effective for administering a composition for faster absorption. Therefore, the rejection is maintained for the reasons of record and for the reasons set forth above.

Conclusion

Art Unit: 1655

No claims are allowed.

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

Application/Control Number: 14/622,732

Page 8

Art Unit: 1655

/Amy L Clark/

Primary Examiner, Art Unit 1655